

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PETER NHO,

Petitioner

VS.

ELISE TRAN,

Respondent

) Case Number: FPT-24-378443

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER RE: CHANGE OF CHILD SUPPORT, SANCTIONS UNDER FCS 271

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Peter Nho (Father) and Respondent Elise Tran (Mother) were never married. They have one minor child, Kayleigh (DOB: 2/15/2020). Father is represented by attorney Amrit Kullar. Mother is self-represented.
- 2) On 8/21/2024, a Judgment Regarding Parental Obligations was filed in related Case No. FCS-24-356892 requiring Father to pay Mother \$1,196 per month in child support based on Father's gross income of \$4,857, Mother's income of \$0, and a 0% timeshare for Father. The Judgment also requires Father to provide and maintain health insurance coverage for Kayleigh if available at no or reasonable cost and for the parties to share equally reasonable uninsured healthcare costs for Kayleigh.
- 3) Now on for hearing is Father's Request for Order filed 4/10/2026 asking the Court to:
 - a. Determine Mother's actual income and earning capacity, including income derived from self-employment, business activities, and electronic payment platforms, and impute income to Mother as appropriate.

- b. Modify any existing wage assignment or child support withholding order to reflect the Court's new child support determination, and any overpayments or underpayments shall be addressed as equity requires.
 - c. Find that Father currently maintains private health insurance coverage for the minor child at his sole expense and order that Father continue to maintain such coverage so long as it remains available at reasonable cost; credit Father for the cost of the child's health insurance premiums in the child support calculation; and clarify that Mother shall not terminate or interfere with the child's medical benefits in a manner inconsistent with the Court's orders or applicable law.
 - d. Allocate unreimbursed medical, dental, vision, and health-related expenses for the minor child between the parties in proportion to their respective incomes, as determined by the Court.
 - e. Consider Mother's prior representations regarding her income, including statements that she has no income, in light of evidence of ongoing business activity and receipt of funds through multiple payment platforms. To the extent the Court finds such representations incomplete or inaccurate, the Court should draw appropriate adverse inferences in determining Mother's income and earning capacity.
 - f. Recalculate child support based on Mother's actual income and earning capacity and made retroactive to the earliest date permitted by law, including but not limited to the date of filing of Father's Request for Order.
 - g. Sanction Mother under Family Code section 271 based on her misrepresentations of being unemployed and having no income, compelling Father to file the instant motion
- 4) On 4/13/2026, Father filed an Income and Expense Declaration stating that he works 40 hours per week and earns \$36.01 per hour as a truck driver. The Court notes this averages out to \$6,242 in gross monthly income.
 - 5) Per the Proof of Service filed 4/17/2026, Father's Request for Order and related papers were mailed to Mother on 4/17/2026.
 - 6) Mother did not file a Responsive Declaration. However, on 5/27/2026, Mother filed an Income and Expense Declaration stating she has been a self-employed manicurist for 11 years. Mother

1 attached a Profit and Loss Statement stating that her total monthly average income is \$2,000 and
2 her average monthly expenses are \$1,200 for average monthly income of \$800. Mother reports no
3 other sources of income. Mother states that her expenses total \$3,100 per month and \$3,000 of
4 her expenses are “paid by others.” Mother states she has “serious health conditions” which
5 “severely limit her ability to maintain a stable job.” Mother did not disclose what health
6 conditions she has, but she attached to her Income and Expense Declaration a summary showing
7 the extensive prescriptions as well as a summary of doctor’s visits.

- 8 7) The Court notes that per the Findings and Order After Hearing filed 5/4/2026, Father has
9 visitation with Kayleigh every Monday for an hour and thirty minutes.

10 **B. Findings and Order**

- 11 1) Father states that records he obtained during discovery show that Mother received in excess of
12 \$170,000 in Paypal transactions between 2013 and 2026 and \$42,943 in Venmo transactions
13 between 2024 through 2026. Father further states that Mother received \$2,590 in Venmo deposits
14 in 2026 “alone”. If these representations are true, these transactions show less than \$3,000 per
15 month in “income.” Father also states that Mother received deposits to her Bank of America
16 account between 12/18/2024 and 1/17/2025 totaling \$7,919.76 and between 12/18/2025 and
17 1/16/2026 totaling \$7,628.44. The Court does not find that Mother is making significant income
18 and because none of these figures provide any information about Mother’s business expenses, the
19 Court is unable to draw a conclusion regarding what amount in net self-employment income
20 Mother may be earning.
- 21 2) Even if the Court were to impute full-time San Francisco minimum wage income of \$19.18 per
22 hour to Mother (which Father has not shown Mother has the ability to earn), guideline child
23 support would amount to \$1,173 as shown in the attached XSpouse calculation. This is because
24 Father is currently earning more than he was previously and he has less than 1% timeshare with
25 Kayleigh.
- 26 3) The Court does not find that Father has demonstrated a change in circumstance warranting a
27 downward modification of child support and Father’s request to modify child support downward
28 is DENIED. The Judgment Regarding Parental Obligations filed on 8/21/2024 shall remain in full
29 force and effect.

- 1 4) In his declaration, Father states he is “concerned that Respondent may interfere with or attempt to
2 alter the child’s medical coverage in connection with ongoing disputes.” The Court finds this
3 statement does not establish good cause for Father’s request that the Court “clarify that Mother
4 shall not terminate or interfere with the child’s medical benefits in a manner inconsistent with the
5 Court’s orders or applicable law.” This request is denied without prejudice to a proper showing.
- 6 5) Father’s request for Family Code section 271 attorney’s fees sanctions is denied.
- 7 6) Father’s attorney shall prepare the Findings and Order After Hearing.
- 8 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).
- 15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	7927	7963
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	2 *	Nets(adjusted)	Father		
Wages+salary	6242	3325	Father	4692		
Self-employed income	0	0	Mother	3235	-1173	-1005
Other taxable income	0	0	Total	7927	Net spendable income	3519
TANF+CS received	0	0	Support		Change from guideline	0
Other nontaxable income	0	0	Addons	0	% of combined spendable	44%
New spouse income	0	0	Guideln CS	1173	% of saving over guideline	0%
401(k) employee contrib	0	0	S.Clara SS	0	Total taxes	1334
Adjustments to income	0	0	Total	1173	Dep. exemption value	0
SS paid prev marriage	0	0	-		# withholding allowances	0
CS paid prev marriage	0	0	Settings changed		Net wage paycheck	4490
Health insurance	216	0		Mother		
Other medical expense	0	0		Payment cost/benefit	1173	1041
Property tax expense	0	0		Net spendable income	4408	4276
Ded interest expense	0	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	56%
Misc tax deductions	0	0	CS	1229	% of saving over guideline	0%
Qual bus income ded	0	0	SS	0	Total taxes	89
Required union dues	0	0	Total	1229	Dep. exemption value	0
Mandatory retirement	0	0			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	36	Net wage paycheck	2781
Other GDL deductions	0	0	Releases	1		
Child care expenses	0	0	Released to Father			

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	1173	Father	1173	Father
	0 - 100	0	0	0	Father	1173	Father	1173	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SOTHEARITH CHANTY,	)	Case Number: FMS-25-387587
Petitioner	)	Hearing Date: June 16, 2026
VS.	)	Hearing Time: 9:00 AM
SIENNA ERIKA REYES DE MESA,	)	Department: 404
Respondent	)	Presiding: CINDEE MAYFIELD

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History:

- 1) Sothearith Chanty (Father) and Sienna Erika Reyes De Mesa (Mother) are the parents of Sebastian Singh De Mesa Chanty, age 5 (DOB 8/21/2019).
- 2) Father filed an RFO requesting joint physical custody and joint legal custody on January 30, 2026. Father alleged that Mother had denied him access to the child since June 2025. Mother opposed the RFO on April 1, 2026. She requested sole physical and legal custody, alleging that Father had a history of alcohol abuse. and had frequently missed scheduled visitation with Sebastian.
- 3) The parties were unable to agree in mediation on the terms of a parenting plan.
- 4) A hearing on Father’s RFO was held before the Honorable Donna Petre on April 28, 2026. Father appeared with his attorney, Jennie Vaughn. Mother appeared with her attorney, Jasmine Nicklberry. Judge Petre ordered that the parents would share joint physical and joint legal custody of Sebastian. Father’s parenting time was established as every Saturday from 10:00 a.m. to 6:00 p.m., and every Wednesday afternoon until Thursday morning.

- 1 5) Father's request for the right to travel internationally with Sebastian for two weeks annually was
2 reserved. This issue was set for hearing for June 16, 2026. Judge Petre authorized each party to
3 file further declarations no later than June 6, 2026 on the issue of Father's request for an order
4 allowing him to travel internationally with the child.
- 5 6) Father filed a supplemental declaration on June 5, 2026. Father stated he immigrated from
6 Cambodia to the United States in 2007 and became a U.S. citizen in 2011. Father lives with and
7 cares for his elderly parents. His parents also immigrated from Cambodia; they became U.S.
8 citizens in 2026. Father has worked as a pediatric medical assistant for the San Francisco Dept. of
9 Public Health, Children's Health Center, for many years. He is working towards obtaining a
10 nursing degree. Father states he is committed to living in the United States, where he can earn a
11 good living and provide good health care for his parents.
- 12 7) On May 27, 2026, during Sebastian's first overnight visit with Father, Sebastian told Father that
13 he was worried that Father would take him to Cambodia and prevent him from seeing Mother
14 again. Father denies intent to interfere with Mother's parenting time. He points out that Mother
15 took Sebastian to visit her country of origin, the Philippines, during the summer of 2025. Father
16 wants Sebastian to be able to visit with his extended paternal family during Father's planned trip
17 to Cambodia from December 20, 2026 through January 3, 2027.
- 18 8) On June 9, 2026, Mother filed an *ex parte* request to continue the June 16, 2026 hearing date to
19 August 25, 2026 or thereafter. The court denied Mother's request for continuance.
- 20 9) Mother did not file a supplemental declaration on the issue of international travel.

21 **B. Findings and Orders**

- 22 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
23 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
24 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
25 child is the United States.
- 26 2) The court's May 1, 2026 order requiring a party who wishes to travel internationally with the
27 child to obtain the written consent of the other parent or a court order remains in full force and
28 effect.
- 29

1 3) The court finds that it is in Sebastian's best interest to (a) develop a positive relationship with
2 Father and with members of his extended paternal family; and (b) learn more about Father's
3 cultural history. Traveling with Father to Cambodia for a gathering of Father's relatives in
4 December 2026 will further these goals.

5 4) Father is authorized to travel with Sebastian to Cambodia between December 20, 2026 and
6 January 3, 2027 on the following conditions:

7 a. Mother shall provide Father with Sebastian's passport on or before December 19, 2026.

8 Father shall return Sebastian's passport to Mother at the conclusion of the trip.

9 b. Father's request to modify the May 1, 2026 court order to require that Sebastian's
10 passport be removed from Mother's possession and lodged with the court is denied
11 without prejudice to renew.

12 c. Father shall provide Mother with a travel itinerary within 48 hours of finalizing travel
13 arrangements for the trip to Cambodia. On or before December 10, 2026, Father shall
14 provide Mother with the address of any location in Cambodia where Sebastian will be
15 spending 1 or more overnights. If the travel or lodging arrangements change during the
16 trip, Father shall notify Mother of the change[s] at the earliest opportunity.

17 d. Father shall allow Sebastian to speak by telephone or videochat with Mother at least once
18 every 48 hours while Sebastian is in Cambodia.

19 e. Should an unforeseen emergency affecting Sebastian arise during the trip to Cambodia
20 (including, but not limited to illness, accident, or natural disaster), Father must notify
21 Mother at the earliest possible opportunity.

22 f. Mother shall refrain from speaking negatively about Father when Sebastian is present.
23 Mother shall not speak negatively to Sebastian about the trip to Cambodia. Mother shall
24 not state or suggest in Sebastian's presence that Father intends to remove Sebastian from
25 Mother's care or prevent Sebastian from spending time with Mother in the future.

26 5) Father's attorney shall prepare the Findings and Order After Hearing.

27 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRANDON BAKHTIAR,

Petitioner

VS.

STEPHANIE MARIE EASTMAN,

Respondent

) Case Number: FDI-18-789193

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME);
REQUEST FOR ORDER DECLARE PETITIONER BRANDON BAKHTIAR A VEXATIOUS
LITIGANT AND ORDER PRE-FILING APPROVAL AND/ OR BOND PRIOR TO FILING ANY
MOTION AND OR REQUEST IN THIS MATTER.

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom at 9AM on 6/16/2026 in
Department 404 to discuss Mother's Request for Order filed 3/3/2026. If a party chooses to appear
by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San
Francisco Family Court set forth above.**

**Additionally, absent good cause shown, the Court intends to make the following findings
and orders.**

I. Mother's Request to Modify Visitation

A. Procedural History

- 1) Petitioner Brandon Bakhtiar (Father) and Respondent Stephanie Marie Eastman
(Mother) have one child together, Shiloe Eastman Bakhtiar, age 9 (DOB 2/17/2017).
- 2) The current custody and visitation order is set forth in the Findings and Order After Hearing filed

November 21, 2025.

- 3) On March 3, 2026, Mother filed an RFO seeking to modify Father's parenting time. A summary of the proceedings related to this RFO is set forth in the Findings and Order After Hearing filed June 1, 2026.
- 4) On May 5, 2026, Judge Mori ordered a Tier II report from Family Court Services (FCS). FCS interviewed Shiloe's therapist, Sara Wagner, LMFT. Ms. Wagner reported that she sees Shiloe monthly for individual therapy. Shiloe presents as "very engaged and emotionally mature for her age." Shiloe wants to have more " 'say so' in the decision about visitation between her father and herself." Shiloe made it very clear to Ms. Wagner "that she prefers not to have visitation with her father."
- 5) Mother filed a supplemental declaration on June 4, 2026. She declared that Shiloe was upset when informed after the May 5, 2026 hearing that she would be required to visit Father on Tuesdays and alternate Saturdays pursuant to the "step up" parenting plan. Mother declared that Father failed to pick Shiloe up from school on May 8, requiring Mother to make childcare arrangements on short notice. Mother further alleged that "Father 's communications have continued to focus on his disputes with me rather than Shiloe's needs."
- 6) Father filed a Supplemental Declaration on June 8, 2026 in which he attacked Mother's credibility, and provided alternate accounts of specific issues raised by Mother.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) **The parties are required to appear on June 16, 2026 at 9:00 a.m. for further proceedings on Mother's RFO filed March 3, 2026.**

II. Mother's Request to Deem Father a Vexatious Litigant

A. Procedural History

- 1) On 11/30/2023, a Findings and Order After Hearing was filed memorializing the orders made at the 11/16/2023 hearing, wherein the Honorable Judge Roeca denied Mother's request to deem Father a vexatious litigant. Judge Roeca found, "There are at least five litigations that were finally determined adversely to Petitioner within the last seven years that would qualify Petitioner as a vexatious litigant under CCP 391(b)(1)." However, Judge Roeca denied Mother's request to deem Father a vexatious litigant "without prejudice should there be further filings without merit." Judge Roeca admonished Father "that absent changed circumstances he is not to file repeated motions for the same relief" and further noted, "If the Court observes such conduct in the future the Court may on its own motion or on the motion of Respondent deem Petitioner to be a vexatious litigant..."
- 2) Now on for hearing is Mother's Request for Order filed 4/20/2026 asking the Court to deem Father a vexatious litigant.
- 3) Per the Proof of Service filed 4/27/2026, Mother's Request for Order was mailed to Father on 4/22/2026.
- 4) Father did not file a Responsive Declaration.

B. Findings and Order

- 1) Since Judge Roeca made his order in November 2023, there have been four Requests for Order filed in this case:
 - a. A Request for Order filed on 3/11/2024 by Mother requesting child support related reimbursements. This Request for Order was denied by Commissioner Wightman on 4/23/2024 after a DCSS attorney found that all accounts had been paid and up to date. Mother was admonished to seek permission from DCSS prior to filing requests for enforcement in the future.
 - b. A Request for Order filed on 2/13/2026 by Father seeking to modify child support. This Request for Order was denied by Commissioner Rahim on 3/24/2026 after a finding of no changed circumstances.

c. Mother's Requests for Order filed 3/3/2026 and 3/11/2026, which are being adjudicated here.

2) The Court does not find good cause to deem Father a vexatious litigant at this time. Mother's request is denied.

III. Preparation of Order

1) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TODD GEORGOPAPADAKOS,

Petitioner

VS.

TANYA GEORGOPAPADAKOS,

Respondent

) Case Number: FDI-22-796813

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS, PROPERTY CONTROL, ENFORCEMENT OF STATEMENT OF DECISION; FAMILY
CODE 1101/2122 REMEDIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Todd Georgopapadakos (Husband) and Respondent Tanya Georgopapadakos (Wife)
married on 6/9/1996. The parties have one adult daughter. Their son passed away from cancer in
2018 at age 15.
- 2) On 3/26/2025, following a three-afternoon long-cause hearing which occurred on 1/28/2025,
1/30/2025, 2/6/2025, the Honorable Judge Costin issued a Final Statement of Decision regarding
Breach of Fiduciary Duty; Division of Property; Permanent Spousal Support; and Husband's
Request for Family Code section 271 attorney's fees sanctions. Regarding spousal support, the
Judge Costin ordered: "The present order for temporary spousal support (\$1,637 per month) shall
remain in effect until after the parties' marital status is terminated. After Judgment terminating
status is entered, the Court sets long term support at \$1,500.00 per month. This amount is, of
course, in addition to the asset distributions from the solar businesses set forth above." Judge

1 Costin also awarded to Husband \$50,000 in Family Code section 271 attorney's fees sanctions, to
2 be paid by Wife at a rate of \$500 per month as a deduction from Wife's monthly spousal support.
3 Judge Costin stated in Paragraph C(1) of the Statement of Decision, "The Court notes it was not
4 tasked at this long cause evidentiary hearing with valuation or division of the entirety of the
5 parties' other assets and debts... The parties still need to reach agreement or schedule an
6 additional trial for the Court to adjudicate any remaining issues."

7 3) On 2/19/2026, the Honorable Judge Mori entered a Judgment which incorporated Judge Costin's
8 Final Statement of Decision, with a reservation of the Court's jurisdiction "over all issues not
9 addressed in the Final Statement of Decision."

10 4) Neither Judge Costin's Statement of Decision, nor the Judgment terminate the parties' marital
11 status.

12 5) Now on for hearing is Wife's Request for Order filed 4/15/2026 asking the Court to:

- 13 a. Set temporary spousal support of \$7,181 per month, based on Husband's total income
14 from all sources ("at minimum \$25,647/month per his own bank declaration") until the
15 property division is complete
 - 16 b. Remove the \$5,000/month earning capacity imputation to Wife. Wife states her present
17 circumstances make the imputation untenable, writing, "I was the primary caregiver for
18 our terminally ill son Xander until his death. I am still grieving. In June 2025, I suffered a
19 stroke and am under active neurology care... I am on Medicaid and SNAP. I cannot
20 afford rent in Honolulu or San Francisco."
 - 21 c. Address the \$500/month FC § 271 sanction offset.
 - 22 d. Order Husband to pay Wife's share of all distributions from GIFT, HPVP, DEP, DEP
23 FIT Energy, DEP/APB JV, and all related entities retroactive to March 26, 2025.
 - 24 e. Order Husband to file an Income and Expense Declaration with Bank Statements.
 - 25 f. Order Husband to file a complete Income and Expense Declaration with all supporting
26 documents within 15 days.
 - 27 g. Neutral CPA + Records. Order all K-1s, tax returns, bank statements, and distribution
28 records for 2021–2025 produced to a neutral CPA within 30 days.
- 29

- h. Order Husband and all entities he controls to cease new capital investments or reinvestments using community funds without prior court approval.
 - i. Set a hearing on valuation of all community business interests.
 - j. Set aside both FL-144s under FC § 2122 (duress, fraud, perjury, failure to disclose).
 - k. Deny request to protect business partners from civil lawsuits.
 - l. Order Husband to pay fees under FC §§ 2030, 2032, and sanctions under FC § 271.
 - m. Order the in-kind transfer of the Waianae solar farm including all land, buildings, solar equipment, and HECO FIT contracts.
 - n. Calendar for full evidentiary hearing. Award 50% penalty (FC § 1101(g)) or 100% (FC § 1101(h)) on all fraudulently concealed assets.
 - o. Retain jurisdiction until Husband has fully complied with the SOD and every order of this Court.
 - p. Other and further relief as the Court may deem just and proper.
- 6) On 4/17/2026, Wife filed a Memorandum of Points and Authorities.
 - 7) On 6/1/2026 and 6/5/2026, Husband filed duplicate Responsive Declarations asking the Court to deny all of Wife's requests. Husband states, "As set forth in Petitioner's Reply Declaration, every issue Respondent raises was adjudicated at the trial before Judge Anne Costin, addressed in the Final Statement of Decision filed March 26, 2025, or resolved by the Judgment (FL-180) that Respondent voluntarily signed on October 20, 2025. Respondent presents no new facts warranting modification or reconsideration." Husband is referring to his Reply Declaration filed on 6/5/2026 for his Request for Order filed 4/10/2026 (which was adjudicated on 6/9/2026). The Court notes there is no Judgment signed by Wife on 10/20/2025 attached to his Reply Declaration filed 6/5/2026 or his Request for Order filed 4/10/2026.
 - 8) According to the Proof of Service filed 6/5/2026, Husband's Responsive Declaration was served on Wife "electronically through File & ServeXpress" on 6/1/2026.
 - 9) Wife did not file a Reply Declaration.

B. Findings and Order

- 1) On the Court's own motion, the hearing on Wife's Request for Order filed 4/15/2026 is hereby continued to **7/21/2026 at 9:00 AM in Dept. 404.**

2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SCOTT DICKIE,

Petitioner

VS.

JANET LEE,

Respondent

) Case Number: FDI-25-801379

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Scott Dickie (Father) and Respondent Janet Lee (Mother) married on 9/5/2009. Both parties state their date of separation is "TBD." Father filed the Petition for Dissolution on 5/15/2025. The parties have two minor children, William (DOB: 10/23/2012, age 13) and Sophia (DOB: 5/11/2016, age 10). Father is represented in limited scope by attorney Kristen Van Antwerp of Moradi Neuffer LLP. Mother is represented by attorney Lisa Tarr of Winter & Ross.
- 2) On 11/21/2025, a Stipulation and Order was entered which provides for joint legal and joint physical custody of the minor children and for the parties to share custody on a week-on, week-off basis. The Stipulation also provides that Father shall move out of the family residence no later than 11/23/2025, Mother shall have exclusive use of the property thereafter, and Mother is responsible for paying the carrying costs for the marital residence.
- 3) On for hearing is Father's Request for Order filed 12/15/2025 seeking guideline child support, temporary guideline spousal support, and Smith / Ostler child and temporary spousal support retroactive to 11/22/2025 (the date Father vacated the family residence); an order for sharing of

1 mandatory and agreed-upon child support add-ons (including private school tuition for each child
2 to finish middle school); and an order requiring that the parties' vacation property in Truckee, CA
3 be listed for sale no later than 5/1/2026. Father states that Mother has signed up the children for
4 an overwhelming number of extracurricular activities despite his objections, including
5 Mathnasium, chorus, piano lessons, French class, Cantonese class, high school preparation class,
6 robotics class, soccer, and volleyball. Father states that he agrees for William to participate in
7 chorus and one other activity of his choice, for Sophia to participate in chorus and soccer or
8 another activity / sport of her choice. Father states that he will only agree to contribute to the cost
9 for additional extracurricular activities if the parties agree upon participation.

10 4) On 12/15/2025, Father filed a Memorandum of Points and Authorities in Support of his Request
11 for the Sale of Vacation Property citing Family Code section 2108.

12 5) On 12/15/2025, Father filed an Income and Expense Declaration.

13 6) On 12/15/2025, Father filed a Statement of Support Calculations.

14 7) On 3/24/2026, Father filed an Income and Expense Declaration.

15 8) On 4/3/2026, Mother filed a Responsive Declaration wherein Mother agrees to pay guideline
16 child support retroactive to 12/15/2025 (the date Father filed his Request for Order) and for
17 Father to pay guideline child support to her effective 10/1/2026 (when Mother's severance pay
18 will "run out"). Mother asks that the Court not award Father retroactive or prospective temporary
19 spousal support. Mother requests temporary spousal support payable by Father effective
20 10/1/2026. Mother also requests that the Court deny Father's request to compel the sale of the
21 Tahoe property. Mother requests orders confirming the parties will have equal management and
22 control of their real properties going forward and will share equally the financial responsibility
23 for those assets while the dissolution is pending. Mother states she was terminated from her
24 employment effective 3/13/2026 and is currently receiving disability benefits of \$1,765 per week.
25 Mother states she expects to receive a lump sum severance payment of \$190,000, which Mother
26 states represents 26 weeks of base pay (\$25,000 per month) plus a \$40,000 "special payment."
27 Mother states Father does not currently need spousal support and even if her severance pay and
28 disability income are "technically greater" than Father's income, Father can support himself,
29

1 whereas her income is temporary and will soon be in need of support from Father. Mother asks
2 that the children's "status quo extracurricular activities" be included in shared add-ons.

3 9) On 4/3/2026, Mother filed an Income and Expense Declaration.

4 10) On 4/3/2026, Mother filed a Declaration by James Good, CPA, CFF with a Statement of Support
5 Calculations.

6 11) On 4/9/2026, Father filed a Reply Declaration in Support of his Request for Orders for Child
7 Support, Spousal Support, and Sale of Truckee, CA reiterating his original requests. Father states
8 they cannot afford to pay for more than two to three extracurricular activities per child which is
9 more than reasonable.

10 12) On 4/9/2026, Father filed an Updated Statement of Support Calculations.

11 13) At the prior 4/16/2026 hearing, the Court continued the hearing on Father's 12/15/2025 Request
12 for Order to 6/16/2026.

13 14) On 5/15/2026, Judge Mori issued a Findings and Order After Hearing adjudicating disputes
14 between the parties regarding custody orders. Judge Mori also made the following order
15 regarding extracurricular activities: "Mother's request for the children to remain in their math
16 tutoring and language classes until the parties agree otherwise or further order of the Court is
17 granted. The children may participate in any additional regularly-occurring, i.e., weekly, bi-
18 weekly, etc., extracurricular activities only by mutual agreement of the parties or Court order."

19 15) On 6/9/2026, Father filed Initial Reports Regarding Income Available for Support, Retroactive
20 Support for December 2025 Through May 31, 2026 and Current Support Beginning June 1, 2026
21 and Onward, and XSpouse Inputs / Reports.

22 16) On 6/10/2026, Mother filed an Update Declaration. Mother states she began a new job as
23 Managing Director at Texas Capital on 5/27/2026. Mother modifies her requests related to child
24 and spousal support. Mother now agrees to sell the Truckee property.

25 17) On 6/10/2026, Mother filed a Declaration by James Good, CPA, CFF with a Statement of
26 Support Calculations.

27 **B. Findings and Order**

28 1) Father's request for child and spousal support retroactive to a date before he filed his Request for
29 Order is denied.

1 2) Support and Add-Ons for the Period 12/15/2025 – 5/31/2026

- 2 a. The Court's jurisdiction to make orders regarding child support and temporary spousal
- 3 support for the period 12/15/2025 (the date Father filed his Request for Order) through
- 4 5/31/2026 is reserved.
- 5 b. Mother's request that the Court set spousal support payable to Father during this period at
- 6 \$0 is denied.
- 7 c. The parties shall meet and confer to calculate guideline child and guideline temporary
- 8 spousal support for this period based upon base income received by the parties during this
- 9 period, including but not limited to base employment income, Mother's severance pay,
- 10 and Mother's disability income.
- 11 d. Equity compensation, bonuses, and Mother's severance pay received for the period
- 12 6/1/2026 – 9/30/2026 plus the \$40,000 special payment she received shall be subject to
- 13 Smith / Ostler bonus tables, to be trued up in 2027.
- 14 e. The parties shall also meet and confer regarding reimbursements owed for child support
- 15 add-ons (mandatory add-ons as defined by Family Code section 4062(a), private school
- 16 tuition, and court-ordered and agreed-upon extracurricular activities) for the period
- 17 12/15/2025 through 5/31/2026. The Court's jurisdiction to resolve any issues is reserved.
- 18 f. If the parties are unable to reach an agreement on these issues, the parties shall return for
- 19 a review hearing on these issues on **Tuesday, 8/25/2026 at 9:00 AM in Dept. 404**. At
- 20 least 10 calendar days prior to the hearing date, both parties shall file one Statement of
- 21 Support Calculation which provides XSpouse calculations for the relevant periods
- 22 between 12/15/2025 – 5/31/2026, plus Smith / Ostler bonus tables for each relevant
- 23 period, and one declaration (not to exceed 5 pages excluding exhibits) explaining any
- 24 remaining disputes.

25 3) Support and Add-Ons Effective 6/1/2026

- 26 a. Mother's request that the Court set temporary spousal support for Father at \$0 effective
- 27 6/1/2026 is denied.
- 28 b. Effective 6/1/2026, in accordance with the XSpouse calculation attached as Exhibit C to
- 29 the Declaration by James Good, CPA, CFF filed 6/10/2026, Mother shall pay Father \$412

per month in temporary guideline base spousal support and \$991 per month in guideline base child support, for total base support due of \$1,403 per month on or before the first of each month.

- c. Effective 6/1/2026, the parties shall pay additional Smith-Ostler guideline child and temporary spousal support on any additional income they receive in excess of their respective base monthly income as attributed in the XSpouse report attached as Exhibit C to the Declaration by James Good, CPA, CFF filed 6/10/2026, in accordance with the parties' respective bonus tables. Bonus child and temporary spousal support payments shall be made pursuant to a true-up, to occur annually.
- d. Commencing in the year 2027, the parties shall exchange documentation annually on May 1st, of all income received preceding calendar year, and any bonus child and temporary spousal support owed between them for such 12-month period shall be paid no later May 15th. The true-ups shall include an exchange of the parties' tax returns for the previous year once both filed returns are available, to ensure the correct amount of support is paid annually.
- e. As the parties' net spendable base incomes are essentially equalized after base child and temporary spousal support are paid, effective 6/1/2026, the parties shall share equally all mandatory add-on expenses per Family Code section 4062(a).
- f. Regarding discretionary add-ons, the parties shall share equally the costs for the children to participate in any court-ordered extracurricular activities and mutually agreed upon activities. The parties shall also share equally the children's private school tuition for the 2026 – 2027 school year.

4) Sale of Tahoe Property

- a. The property located at 12983 Stockholm Way, Truckee, CA 96161 ("Tahoe Property") shall be listed for sale as follows.
- b. The parties shall select a mutually agreeable realtor.
- c. The parties shall consult with and give substantial weight to the realtor's recommendations and opinions as to the timing of the listing, listing price, any minor

recommended repairs, and staging of the property. The parties shall respond timely to any offers of purchase and shall not unreasonably withhold acceptance.

d. The Court shall retain jurisdiction to resolve any disputes over all aspects of the listing and sale process, including but not limited to timing and price, improvements and/or repairs to ready the Tahoe Property for sale, escrow instructions and acceptance of offers of purchase.

e. Pending the sale of the Tahoe Property, the carrying costs and any agreed-upon costs to ready the property for sale shall be paid equally by the parties.

f. Upon the sale of the Tahoe Property, the sales proceeds net of transactional costs and after satisfaction of any encumbrances including the mortgage loan, shall be distributed as follows:

i. Each party shall receive an advance against his/her share of the community property in the amount of \$50,000, which shall be confirmed to him/her as his/her sole and separate property, free and clear of the Standard Family Law Restraining Orders.

ii. The remaining net proceeds shall be deposited into an interest-bearing joint account from which no withdrawals shall be made in the absence of the mutual written agreement of the parties or order of the court.

iii. The parties shall meet and confer in order to allow for the payment of any actual or estimated tax liabilities associated with the sales proceeds from the joint account.

5) Father's attorney shall prepare the Findings and Order After Hearing.

6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).